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Sub-Agreement Modification Modification No. 01
Between
Partners of the Americas
And
Comité Fronterizo de Obreros y Obreras

This modification is made and entered into as of 12 / 01 / 2021 , between Partners of the Americas ("Partners"), which is incorporated under the laws of Washington DC and has its principal place of business at 1424 K Street NW, Washington, D.C. 20005, and **Comité Fronterizo de Obreros y Obreras** ("Sub-Awardee").

I. BACKGROUND
On **October 31, 2021**, the parties entered into an agreement with regard to the Sub-Awardee's technical assistance to Partners implementing the *Mexico Awareness Raising Project*, supported by the U.S. Department of Labor.

II. PURPOSE OF MODIFICATION
This Modification No. 01 is made to reflect the following:

A. Increase the obligated amount under the sub-award from USD $25,922.00 to $49,434.50 based on current spending and activities planned.

III. THE TEXT OF THE SUB-AGREEMENT IS MODIFIED AS FOLLOWS:
A. Modification to Article 5. Amount of Award, Estimated Cost and Budget

The total amount of this Award is USD $329,498.00 ("Award Amount"); if and when the Sub-Award is fully funded, and is equal to the total estimated cost (TEC) of the award. Amount of the award is subject to the availability of funds provided by the donor. No cost will be paid above the total estimated cost. In the event of termination before expiration of the Period of Performance, in accordance with the terms of this Agreement, POA shall pay all allowable costs accrued by Sub-Awardee as of the date of termination, including non-cancellable obligations.

The amount hereby obligated to this Sub-Award is USD $~~25,922.00~~ $49,434.50. This is the total amount available to the Sub-Awardee for implementation of the program described in Annex A. Incremental funding will be allocated if and when additional funding becomes available.

a. The Sub-Awardee shall not exceed and POA is not obligated to pay amounts greater than this obligated amount.
b. The Sub-Awardee should notify POA in writing whenever it has reason to believe that the costs it expects to incur under this Sub-Award in the next 60 days, when added to all costs previously incurred,

will exceed 70% of the Total Obligated Amount and/or Estimated Sub-Award Amount specified in this article or as modified thereafter.

This Sub-agreement will be funded in installments, including meeting certain conditions and reporting deadlines, listed in Annex D, Programmatic Implementation Schedule, Requirements and Reports.

Any unspent money at the end of the project should be reimbursed to POA.

The detail of the total estimated cost has been provided in the budget of this Sub-Agreement and as attached in Annex B "Detailed Budget".

BUDGET
The following is the Sub-Agreement Budget.

a. Revisions to this budget shall be made in accordance with USDOL Award Provisions, Budget requirements and 2 CFR 200.308.
b. Sub-Awardee is required to report deviations from the budget. POA's approval is required to authorize the Sub-Awardee to reassign funds under the Sub-Agreement budget line item. Whenever the amount of Federal funds authorized in this Sub-Agreement is expected to exceed the requirements of the project, as outlined in the approved proposal, by more than ten (10) percent of the award amount, the Sub-Awardee will promptly notify the POA Program Manager. In any case all changes between budget categories must to be informed to POA.
c. The Sub-Awardee shall submit to the POA Program Manager for prior approval the proposed budget for any monetary agreement with a flow down of programmatic responsibility to a sub-recipient.
d. Consultant agreements are considered sub-contracts for the purposes of this award. In the event that new consultants proposed are not included in the original budget, the Sub-Awardee must submit a justification and request POA Program Manager approval for any consultant.
e. In the event that new personnel proposed are not included in the original approved budget, the SubAwardee must submit a justification and request POA Program Manager approval for any personnel.

Categories	Amount	Cost Share	Total
1. Outcome 1	$280,793	$0	$280,793
2. M&E	$18,750	$0	$18,750
3. Total Direct Costs	**$299,943**	**$0**	**$299,943**
4. Indirect Costs	$29,954	$0	$29,954

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Categories	Amount	Cost Share	Total
5. Total Costs	**$329,498**	**$0**	**$329,498**

All other terms and conditions of the Original Sub-Agreement and any subsequent modifications remain in effect.

The entire agreement is included below the signatures, in its entirety, with all modifications up to and including the modifications from this amendment. For any discrepancy between the below agreement and the modifications indicated above, the changes annotated above shall take precedence.

IN WITNESS WHEREOF, the parties have duly executed this Agreement as of 12 / 01 / 2021

Partners of the Americas
1424 K ST. NW, Suite 700
Washington, DC 20005

Carmen Peña

Carmen Peña
VP, CPU

Comité Fronterizo de Obreros y Obreras

Julia Quiñonez

Julia Quiñonez
Executive Director

By the signature above, Sub-Awardee acknowledges and warrants that prior to signing, Sub-Awardee has read this Agreement in its entirety and was afforded reasonable time to consider the Agreement. Specifically, Sub-Awardee understands that this is a contractual Sub-Agreement relationship.

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For Internal Use Only

Agreement Approval Cover Sheet

This form is to be filled out with the proper approvals and submitted for ALL agreements. The final approved form should be included with all payment requests in lieu of full agreement.

Requesting Department: CPU Date: Feb 01, 2022 Urgent: ☐

Petitioner: Olivia Robertson-Moe

Contractor/Grantor/Grantee* Name: Comite Fronterizo de Obreros y Obreras

* Contractor is vendor, organization or individual receiving agreement

Contractor/Grantor/Grantee Contact Name:

Financial Obligation Total:

	Price
	$49,434.50

Agreement Dates:
Start: 10 / 01 / 2021
End: 12 / 31 / 2024

Addendum Dates:
Start: 12 / 01 / 2021
End: 12 / 31 / 2024

Current Agreement Purpose: Modify the obligated fund amount.

Agreement Type: Sub-contract

Funding sources and % or $ breakdown: DOL423 (100%) MX.1.1.A, MX.3.7.A

(List out all sources and breakdown to cover cost of contract)

Has Partners worked with this contractor in the past? Yes ☑ No ☐

VP or Depart. Director Approval: Carmen Peña

Carmen Peña
VP, CPU
Name & Title

By signing above, I certify that I have read and understand the terms of this agreement and have appropriate authority to submit this agreement on behalf of my department. I further certify that the agreement is complete and includes all exhibits, attachments and pages.

Fiscal Officer Review: Debra Cooper Debra Cooper, CFO

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_____ *Name & Title* A.N.

By signing above, I certify that the contract is within the budget categories for the identified funding sources and is within the approved budget

Signature Certificate

Reference number: SB9ST-AV45K-3Y556-FDIHH

Signer	Timestamp	Signature
Carmen Peña Email: cpena@partners.net		Carmen Peña
Sent:	01 Feb 2022 22:30:54 UTC	
Viewed:	02 Feb 2022 14:37:32 UTC	
Signed:	02 Feb 2022 14:38:30 UTC	IP address: 108.18.100.173 Location: Dunn Loring, United States
Debra Cooper Email: dcooper@partners.net		Debra Cooper
Sent:	01 Feb 2022 22:30:54 UTC	
Viewed:	04 Feb 2022 19:33:38 UTC	
Signed:	04 Feb 2022 19:34:11 UTC	IP address: 66.44.23.38 Location: Washington, United States
Julia Quiñonez Email: cfomaquiladoras@prodigy.net.mx		Julia Quiñonez
Sent:	01 Feb 2022 22:30:54 UTC	
Viewed:	04 Feb 2022 20:48:41 UTC	
Signed:	04 Feb 2022 20:50:25 UTC	IP address: 200.68.140.91

Document completed by all parties on:

04 Feb 2022 20:50:25 UTC

Signed with PandaDoc

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